

University of Westminster Terms and Conditions

for students who are studying with a partner institution

Do these terms and conditions apply to me?

1. These Terms and Conditions apply to you only if a partner institution is delivering your course and, on successful completion, you will receive an award from the University or credits that may entitle you to an award from the University.
2. You should read these Terms and Conditions very carefully and, if you want more information or are unsure about anything in them, please contact termsandconditions@westminster.ac.uk.

Do I have a contract with the University of Westminster or the partner institution?

3. You have a separate contract with both the partner institution and the University of Westminster ("the University", "us", "we"). The contracts run in parallel where the partner institution is delivering your course and it leads, on successful completion, to a University award or to credits towards a University award.
4. Your contract with us is formed on the date that you register for the first time for your course, but no new contract will be created when you register for any future years of study on the course.
5. To register you must have already accepted the offer of a place on the course with your partner institution. If the offer is conditional, this will be the date that you have fulfilled all the conditions.
6. Your contract with us is made up of the following:
 - a. these Terms and Conditions;
 - b. Policies and Regulations which apply to all students studying for a University of Westminster award, and which are accessible via the links below; and
 - c. (if you are under the age of 18 at the time you first register with us), our [Policy for the Admission of Students Under 18 Years of Age](#).
8. Please note that your contract with the partner will also include the partner's policies and regulations. You are advised to read the partner's Terms and Conditions document.

When do I need to register with the University?

9. The partner institution will make arrangements with you to register each year and will notify us of your registration. You must register before the start of each year of study and your contract with us will be cancelled if you fail to do so.
10. If you change your mind after registering for the first year of study, you must refer to the partner institution's relevant Terms and Conditions for more information. There may be fee implications from the partner institution.

Do I pay fees to the University or the partner institution?

11. You must pay all applicable fees to the partner institution, or as the partner institution directs you, in accordance with its terms and conditions.

12. If you must re-take any module or repeat any year of study, you may be charged additional tuition fees.

What rules and regulations do I have to comply with?

13. By completing registration with us, you agree to comply with all rules, regulations, and procedures of both the University and the partner institution. These rules, regulations and procedures may be updated during your studies.
14. We reserve the right to make changes to our regulations, policies and procedures and to introduce additional documents where they benefit students or are necessary because of changes in law, regulatory or funding requirements, or where they reflect good practice or aid clarification. We will notify the partner institution where changes are made. The partner institution will then notify you.
15. New requirements which you must comply with may be introduced, or changes to existing requirements you must comply with may be made, where they are imposed by law or a third party (for example, an accrediting professional body), or they reflect current good practice. We will give you notice of any which apply to you. We will make you aware if there are particular requirements for your course that we require you to comply with.
16. If you are studying a course to practise a particular profession, or are applying for registration with a professional body, any concerns about your fitness to practise will be considered under the applicable Fitness to Practise Procedure of the University or the partner institution. (Note: In addition to our Rules and Regulations, you must also comply with the Rules and Regulations of the applicable professional body).
17. The University qualification you are awarded will depend on the level of your course, the credits/marks you obtain and the threshold of classification you reach as set out in our [Academic Regulations](#).
18. Where you have access to our IT system during your course, you must comply with our [IT Acceptable Use Policy](#). In particular, you are responsible for all activity on your user account and your password must be kept secure. Monitoring of your account may be carried out to ensure there is no misuse. Misuse may incur sanctions including blocking of your account.

What happens if my course changes or is closed?

19. The terms and conditions of the partner institution will govern how and when course closure or changes to delivery of the course can be made. We will ensure that changes are made or that a course is withdrawn only where necessary.
20. Major changes to a course during your studies will be made only in exceptional circumstances. However, we may make such changes where we consider they are covered by the following conditions and where all necessary approvals have been obtained:
 - a. to comply with new or modified laws and regulations or with the requirements of relevant professional bodies; or
 - b. the change is beneficial to students; or
 - c. there are other unforeseen circumstances which are outside our control.

21. We may also withdraw a course where we consider this is necessary under paragraph 20 a. or 20 c. above, or where the partner institution ends its relationship with us or fails to deliver the course to the required quality or standard.
22. If a course is withdrawn, or the partner institution is unable to continue to deliver the course, the University will make alternative arrangements to ensure that registered students are able to complete their course.
23. If you are adversely affected by a significant change or withdrawal, you may be able to switch to another course or, in the absence of a suitable alternative, cancel and no longer study on a University of Westminster course.
24. The range of optional modules available to you may change for the reasons outlined above, or where modules are over-subscribed, or (if you have interrupted your studies or deferred your place) modules are discontinued.
25. Our courses are regularly reviewed, and minor changes made. This is done to ensure the continuing quality and currency of the course and to improve the student experience throughout the life of a course.

What happens if the University can no longer make an award for which it is responsible?

26. The University's [Student Protection Plan](#) explains the measures we will take to protect you if the continuation of your studies is put at risk due to any exceptional and unforeseen events (e.g. loss of our degree awarding powers).

How do I cancel my contract (permanently leave my course)?

27. Your rights to cancel, and your entitlement to any refund, are governed by the terms and conditions of the partner institution.
28. If your contract with the partner institution is cancelled, then your contract with the University will automatically be cancelled.

Can I be permanently removed from my course and my contract cancelled?

29. The circumstances in which you can be permanently removed from your course and your contract cancelled are governed by the terms and conditions of the partner institution.
30. If your contract is cancelled, your registration as a student will be cancelled. As a result, you would no longer be able to make use of partner or University facilities, attend classes or lectures, sit examinations, or submit assignments for marking. Any assessments/ assignments, (e.g. coursework or exams) that you do submit or take, following cancellation, will be disregarded.

How do I interrupt my studies?

31. You must give notice to interrupt your studies to the partner institution in accordance with its terms and conditions.

How do I complain if anything goes wrong?

32. We recognise that sometimes things go wrong, and the paragraphs below set out where to make a complaint.
33. **When to complain to the partner institution:** when your complaint relates to the delivery, teaching, timetabling, or to any facilities, processes or other elements that the partner is responsible for delivering.
34. **When to complain to the University:**
- When your complaint relates to the award, or the credits towards the award, made by the University to students on your course.
 - When your complaint relates to any services or facilities that the University is responsible for delivering.
 - When you have made your complaint to the partner institution, but your complaint remains unresolved after the final stage of the partner institution's own complaints procedure.
35. If your complaint to the partner institution remains unresolved after the final stage of the partner institution's own complaints procedure, you may refer your complaint to the University through our complaints process.
36. If you consider that your complaint remains unresolved after the final stage of the University's complaints procedure, you may refer it to our Regulator, the [Office of the Independent Adjudicator](#).

If anything goes wrong, who is responsible for putting it right?

37. The University is solely responsible for the remedy/outcome of each complaint that is made to the University under paragraphs 34 and 35 above, where the complaint is upheld in whole or part.
38. The partner institution is solely responsible for the remedy/outcome of each complaint that is made to the partner institution under paragraph 33, where the complaint is upheld in whole or part (and including where it is further considered by the University under paragraph 35 above.).

If I want to make an academic appeal, how should I do this?

39. Assessment outcomes for University awards are confirmed by Assessment Boards. You may submit an academic appeal against a decision reached by an Assessment Board, but specified grounds and time limits apply, please see the Academic Appeals section of the University of Westminster Academic Regulations.

Who is responsible for any academic appeals?

40. Academic appeals are conducted by the partner institution, in accordance with the processes and Academic Regulations of the University.

41. The appeals are managed locally by the partner, in consultation with the University of Westminster Academic Standards Manager.
42. Students have a final right of appeal to the University on academic matters. In accordance with the rules of the Office of the Independent Adjudicator for Higher Education (OIA), all students have a further right of appeal to the OIA on conclusion of the University appeals process.

What is the procedure for dealing with any misconduct?

43. The partner institution may take disciplinary action against you under its own disciplinary procedure.
44. Academic misconduct will be dealt with by the partner institution in accordance with the University Academic Misconduct regulations.
45. The outcomes of all academic misconduct allegations are reported to the University by the partner.

Will I own the copyright in the work that I produce (e.g. assessments) during my course?

46. The partner institution's intellectual property policy will apply.

Will I have access to the University's services and facilities?

47. You may have access to certain services or facilities of the University. However, this will depend on the course, the partner institution's contract with the University, and the location of your studies. See your course handbook for further information.
48. Any university facilities to which you do have access may need to be suspended or modified because of essential maintenance, refurbishment or improvements, health and safety concerns or other circumstances outside our control. We will maintain facilities to a reasonable level and, wherever possible, will minimise disruption.

How is my personal data protected?

49. It is your responsibility to provide the partner institution with correct contact details and to update these where needed.
50. The University and the partner institution are each responsible for the personal data that they are processing in connection with the delivery of your course.
51. Where you are registered with the University, we will process your personal data in accordance with the current UK Data Protection legislation.

Will I belong to the University's Students' Union?

52. You may be able to join a student organisation or union at the partner institution. You will not be eligible to join the University Students' Union.

Can you make changes to these terms and conditions?

53. We reserve the right to change these Terms and Conditions at any time without notice to you provided that:
- the changes are either beneficial to students or are not significant; or
 - are in response to changes in applicable laws and regulations or rules of applicable professional bodies; or
 - are to rectify an error or to aid clarification.

Will I be entitled to attend a graduation ceremony at the University?

54. The partner institution will normally provide a graduation ceremony. You may be able to attend a graduation ceremony at the University.

Award documents

55. The University is responsible for the award documents for your course. The award documents comprise the award certificate and the award transcript.
56. The award documents will include the University name, the name of the partner institution, language of instruction, your full name, the award level, validated course title, any classification, merit or distinction attained, and the date of conferment.
57. The name that appears on all award documents will be your full name as it is recorded in our system on the date you are awarded a qualification by the University.

Which country's laws govern my contract?

58. Your contract with the University is governed by English law. Your contract with the partner institution is governed by the laws of the country in which the partner institution carries out its business. For further information you should contact the partner institution.

About the University

59. The University of Westminster ("the University", "us", "we") is a charity and a company limited by guarantee.
- Registration number: 977818 England.
 - Registered Office: 309 Regent Street, London W1B 2HW.
 - You can contact us by email: termsandconditions@westminster.ac.uk
60. The University is regulated by the [Office for Students](https://www.officeforstudents.org.uk) ("OfS"). The OfS can be contacted at info@officeforstudents.org.uk / +44 (0)117 931 7317.